

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.090	0.090	0.032	0.108	0.145
Trial Fee-Shifting	0.057	0.057	0.052	0.094	0.133
Complete Fee-Shifting	0.057	0.057	0.052	0.094	0.133

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.174	0.174	0.002	0.308	0.080
Trial Fee-Shifting	0.119	0.119	0.009	0.204	0.085
Complete Fee-Shifting	0.119	0.119	0.009	0.204	0.085